

Manisha Tiwari v. District Magistrate, Lucknow and others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 23 September 2022 · WRIT - C No. - 6614 of 2022 · **Writ disposed of with a direction to consider four easy installments and to ensure supply on the first deposit.**

HEADNOTE

New-connection estimate — installments. The petitioner, having completed formalities for a domestic connection at Indira Nagar, Lucknow, sought to pay the quantified estimate of Rs. 51,659 in installments, relying on clause 4.9k of the Electricity Supply Code, 2005. With no objection from opposite parties 3 and 4, the Lucknow Bench directed the competent authority to consider her representation, expected permission for four easy installments, and directed that electricity supply be ensured on deposit of the first installment. Writ disposed of. Clause 4.9k is recorded as cited.

FACTUAL SUMMARY

Manisha Tiwari, a resident of house No. B-163, Harihar Nagar, Indira Nagar, Lucknow, applied for an electricity connection and completed the requisite formalities. The estimate for giving supply was quantified at Rs. 51,659. She did not deposit that amount, stating that her financial condition was precarious and that she could not pay the whole sum at one time. She asked to be allowed to pay the estimate in installments. Counsel for opposite parties 3 and 4 did not object to the competent authority considering a representation for that purpose.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9k

installment payment of a new-connection estimate

HOLDING

Treating clause 4.9k of the Electricity Supply Code, 2005 as permitting a consumer to seek payment of the new-connection amount in easy installments, the Court directed the competent authority to consider the petitioner's representation, expected that the quantified estimate of Rs. 51,659 would be allowed in four easy installments, and directed the opposite parties to ensure electricity supply without hindrance on deposit of the first installment. ¶ 1

FLAG ambiguous-clause

PRINCIPLE TAGS

clause-4.9k-new-connection-estimate-in-easy-installments A consumer who has completed new-connection formalities but cannot pay the quantified estimate at one time may seek installment permission. The authority was directed to consider that request, four easy installments were expected, and supply was to be ensured on the first deposit. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS. 51,659 ESTIMATE AND THE DATES OR AMOUNTS OF EACH INSTALLMENT

The Court did not examine how the estimate was quantified and did not fix an installment calendar. It directed consideration and expressed an expectation of four easy installments. ¶ 1

